

303	<i>Mittera Group, Inc. vs. Celebration Mailers, LLC</i>	Defendant Mittera Group, Inc.'s demurrer to the fourth amended complaint of plaintiff Celebration Mailers, LLC is CONTINUED to 8/3/26 at 1:30pm in Dept. C24. Defendant filed a reply addressing the merits of an opposition apparently served by Plaintiff. However, there is no opposition reflected in the court record. It appears Plaintiff mistakenly filed the wrong document on July 7, 2026. (See ROA 133.) Plaintiff shall file the opposition forthwith, and no later than five (5) court days before the next hearing. The court also continues the CMC to 8/3/26 at 1:30pm. Defendant shall give notice.
304	<i>Ocampo vs. General Motors LLC</i>	General Motors' (GM) Motion to Tax Costs is GRANTED in part and DENIED in part. A prevailing party in an action "is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032(b).) § 1033.5 sets out the list of items allowable as costs under § 1032. (Code Civ. Proc., § 1033.5(a)(1)-(16).) Costs "shall be reasonably necessary to the conduct of litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5(c)(2).) Items not listed, upon assessment, may be allowed or denied at the court's discretion. (Code Civ. Proc., § 1033.5(c)(4).) Civil Code § 1794(d) also mandates that prevailing buyers in Song-Beverly actions recover attorney's fees "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code § 1794(d).)

		GM contends filing and motion fees relating to Plaintiffs' motion to compel were unnecessary because the motion practice was one-sided and the motions were never heard. Motion fees are allowable costs under § 1033.5. (Code Civ. Proc., § 1033.5(a)(1).) However, because the motion was filed after the mandatory settlement conference statement, before the notice of settlement, and was ultimately not heard, there is no showing the motion filing fee was a necessarily incurred cost for litigation. Objections against all other mandatory fees such as jury fees, service of process fees, and fees for electronic filings or service are not well founded. The court deems such costs reasonably necessary to advance litigation and effectuate the settlement. The court will allow such costs to be recovered because Defendant did not meet its burden of showing the costs were not reasonable or necessary. The court agrees that costs regarding filing and motion fees relating to the motion to compel filed 08/01/2025 were not reasonably necessary to advance litigation or effectuate the settlement. Accordingly, the court GRANTS the motion, in part, and taxes Plaintiffs' Memorandum of Costs in the amount of \$72.36 (\$328.62 - \$256.26). Plaintiffs are awarded \$714.87 (\$787.23 - \$72.36) in costs. The OSC remains on calendar for 7/20/26. GM shall give notice.
305	<i>Phol vs. Synched, LLC</i>	Scott Shibayama's (Moving Counsel) motion to be relieved as counsel for Defendant Synched, LLC c/o Ratchel Pinlac is GRANTED. On its own motion, the court sets an OSC re: status of unrepresented entity for 10/5/26 at 8:45 a.m. The court will interlineate the new hearing date for the order to show cause re: status of unrepresented